

		been resolved against the indemnitee, i.e., those as to which the indemnitee has actually sustained liability or paid damages.” (<i>Crawford, supra</i>, 44 Cal.4th at p. 509.) Moreover, there is a real risk of inconsistent rulings. For Lusardi to prevail on its indemnity claims, Defendants’ negligence must be the proximate cause of Owner’s damages. If this action weren’t stayed in favor of the arbitration, the arbitrator could find that Defendants’ negligence didn’t cause Owner’s damages, while this Court could simultaneously find Defendants’ negligence did. Such a result is to be avoided. However, Lusardi argues that the risk of inconsistent rulings can be avoided without a stay by postponing consideration of the merits of the indemnity claims until after the Arbitration concludes. The Court is inclined to agree, but believes consideration of the merits should be formally stayed rather than simply having a trial date pushed back. If a stay is informally accomplished by postponing the trial, there is a chance that summary judgment or adjudication rulings in this matter might conflict with rulings made in the Arbitration. Accordingly, the Court, in a discretionary exercise of its inherent authority, grants the motion as to Lusardi’s remaining claims. Lusardi argues that even if a stay on merits determinations is granted, the Court should allow discovery to proceed so as to avoid duplicative discovery taken in the arbitration proceeding. This request is denied. Allowing such discovery (often the most expensive aspect of any case) would effectively nullify one purpose of the stay—avoiding potentially unnecessary litigation expenses. If such discovery were allowed, MBO would be forced to participate in depositions and written discovery even if it later turns out that Lusardi succeeded in defending against the Owner’s claims. That said, if the Owner prevails in the Arbitration and the stay in this case is lifted, the Court expects the parties to work cooperatively on a discovery plan that allows discovery to proceed in an efficient manner, including what aspects of discovery taken in the Arbitration can be used in this litigation. Moreover, to the extent that discovery aimed at MBO is taken in the Arbitration, the Court expects the parties to cooperate regarding the use of that discovery in this litigation.
10	Legends Hospitality Wage and Hour Cases JCCP 5466	Motion for Coordination Scott Shuster, joined by Trinity Martinez and Demetrius Crook, petition for coordination of the following actions (“Included Actions”): 1. <i>Murchison v. MVP Productions, LLC</i>, Orange County Superior Court No. 21-01234789 2. <i>Martinez v. Legends Hospitality, LLC</i>, Orange County Superior Court No. 24-01380394 3. <i>Shuster v. Legends Hospitality, LLC</i>, Los Angeles County Superior Court No. 22STCV32193

	4. <i>Crook v. Legends Hospitality, LLC</i>, Los Angeles County Superior Court No. 23STCV24567 5. <i>Martinez v. Legends Hospitality, LLC</i>, Los Angeles County Superior Court No. 24STCV04068 6. <i>Lampkin v. Legends Hospitality, LLC</i>, Los Angeles County Superior Court No. 26STCV05689 (noted as an add-on action in subsequent filings) The petition is opposed by Domingo Murchison and Legends Hospitality, LLC. The parties’ requests for judicial notice are GRANTED. For the reasons set forth below, the petition for coordination is DENIED without prejudice. In the event the pending settlement in <i>Murchison</i> is not approved, then the Court will consider a renewed petition. Shuster’s request for a stay of proceedings pending coordination is DENIED AS MOOT. <u>GROUND FOR RULING</u> I. <u>Factual and Procedural Background</u> The Included Actions are a combination of class and PAGA actions involving non-exempt employees of Legends, a company that provides event hospitality services. The parties to <i>Murchison</i>, which is pending in this Court, previously reached a settlement. The plaintiffs in <i>Shuster</i> and <i>Martinez</i> attempted to intervene in <i>Murchison</i> to oppose that settlement. Their request was denied. However, the LWDA appeared in <i>Murchison</i> to object to the PAGA portion of the settlement. This Court denied preliminary approval of the original <i>Murchison</i> settlement without prejudice to the parties reaching a new agreement that addressed the Court’s concerns. A new settlement has been reached in <i>Murchison</i>. A motion for preliminary approval is on calendar for October 2, 2026. II. <u>Discussion</u> CCP § 404.1 provides: Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions for all purposes in a selected site or sites will promote the ends of justice taking into account whether the common question of fact or law is predominating and significant to the litigation; the convenience of parties, witnesses, and counsel; the relative development of the actions and the work product of counsel; the efficient utilization of judicial facilities and manpower; the calendar of the courts; the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, the likelihood of settlement of the actions without further litigation should coordination be denied. In their present posture, the Included Actions do not present common questions of law or fact. True, they involve overlapping employee groups and overlapping Labor Code violations. But all
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		that remains to be decided in <i>Murchison</i> is whether “the consideration being received for the release of the class members’ claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the particular litigation.” (<i>Kullar v. Foot Locker Retail, Inc.</i> (2008) 168 Cal.App.4th 116, 129.) The underlying Labor Code disputes will not be decided by the Court. Nor will the courts in the other Included Actions be asked to rule on the propriety of the <i>Murchison</i> settlement. Shuster contends coordination is necessary because it is unlikely the Court will approve the <i>Murchison</i> settlement. His petition catalogues various reasons he believes the settlement is improper. (Shuster Memo. at pp. 12-16.) These arguments are substantive objections to the settlement, not grounds for the procedural device of coordination. If the Court grants preliminary approval of the <i>Murchison</i> settlement, Shuster is free to raise them in objections, just like any other class member. In her response, Martinez suggests coordination is proper because “a global settlement [would be] difficult to manage without coordination.” (Martinez Resp. at p. 7.) But coordination does not mean the Included Actions are automatically consolidated for all purposes, such that Legends must reach a single global settlement with all named plaintiffs in the Included Actions. Even if coordination were granted, there is still a signed settlement agreement in <i>Murchison</i> that might result in the partial or total resolution of the Included Actions, regardless of whether the other plaintiffs are parties to that agreement. The coordination proponents also point out that if approval of the <i>Murchison</i> settlement is denied, all of the other cases will present duplicative discovery and overlapping legal and factual questions. Again, this appears true enough. But from the Court’s review of the docket in <i>Murchison</i>, no opposition to preliminary approval has been filed. At least on the current record, the possibility that approval will be denied outright is speculative. For these reasons, the petition for coordination is denied. Shuster’s request for a stay pending coordination is moot.
11	Nguyen vs. Hands on Bicycles, Inc. 2023-01343626	Defendant's Motion to Seal Defendant Hands On Bicycles, Inc.’s motion to seal is GRANTED. A court may order a record to be filed under seal only if it expressly finds facts establishing: 1. There exists an overriding interest that overcomes the right of public access to the record; 2. The overriding interest supports sealing the record; 3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. The proposed sealing is narrowly tailored; and 5. No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).)